

PART I: Multiple Choice (8 questions)

1) Under the modern plausibility approach for evaluating a complaint in federal court:

- A. Courts credit all allegations, including conclusory labels.
- B. A complaint survives if any set of facts could be imagined to support it.
- C. Plaintiffs must plead detailed evidence, using witness deposition testimony, and must submit authenticated documents.
- D. Courts disregard conclusory assertions in the Complaint and ask whether remaining factual content plausibly suggests liability.**

2) P is hit in a car crash by a driver for Trucking Co. P unfortunately dies from the injuries. P's survivor sues Trucking Co., in federal court. However, because P has passed away, P's survivor cannot confirm what happened with P. Therefore, in the Complaint, P's survivor alleges, in the alternative, that (i) Trucking Co.'s driver ran the red light, or (ii) Brakes-R-Us, the brake-maintenance contractor that provides truck maintenance for Trucking Co.'s fleet, negligently serviced the fleet and Trucking Co. negligently failed to recognize that. Before discovery, Trucking Co. moves to strike the inconsistent theories from the Complaint. What should the court likely do?

- A. Strike the alternatives; inconsistency is forbidden.
- B. Allow alternative and inconsistent theories at the pleading stage.**
- C. Require P's survivor to pick one of the two theories immediately.
- D. Dismiss the Complaint unless P's survivor attaches expert reports examining the truck's brakes.

3) In a federal civil case, during rolling discovery productions, Firm A accidentally produces 15 privileged emails. But Firm A promptly notifies the

opponent and shows that Firm A had used reasonable screening steps to prevent accidental production. However, Opponent refuses to return the emails. The federal court would likely hold:

A. Privilege is automatically waived by any inadvertent disclosure.

B. No waiver if the producing party took reasonable steps to prevent and then promptly rectify the accidental disclosure.

C. Whether or not the privilege was waived depends only on the number of pages that were disclosed.

D. In federal court, privilege can never be clawed back once opposing counsel reads the emails.

4) Two days after an explosion at a chemical plant, in-house counsel for the chemical company commissions a technical report examining the root causes of the explosion. The company must also file a report with the Securities and Exchange Commission (an agency of the federal government) stating that there was an explosion. Injured workers sue the company in federal court, and during discovery, the injured workers move to compel disclosure of the company's internal report. Which is most accurate?

A. Work product if prepared because of anticipated litigation.

B. Not work product because the company was also required to file a report with the government.

C. The internal report certainly consists solely of opinion work product, which is not discoverable.

D. Never work product unless outside trial counsel retained the engineers who conduct the technical report, and here it was in-house counsel.

5) Eighteen months into litigation, on the eve of summary-judgment briefing, P moves to add a new negligence theory to their Complaint, based on facts that D has known from the start of the case. No new discovery would be required.

D opposes the motion, claiming “undue delay” and “prejudice” because D had already planned its strategy around the original pleading. Best result?

- A. Deny the motion for leave to amend, because any late amendment is undue delay.
- B. Grant the motion for leave to amend, because the mere passage of time without concrete prejudice to the defense on the merits is not a sufficient reason to refuse amendment.**
- C. Deny the motion for leave to amend unless P shows “extraordinarily good cause.”
- D. Grant the motion for leave to amend only if P pays D’s attorney fees.

6) Plaintiffs bring a disgorgement-style claim seeking defendant’s profits for an alleged statutory privacy violation. The statute is silent on jury trials. What’s the strongest analysis of the jury right?

- A. No jury trial right, because profits are always equitable.
- B. The jury-trial right attaches, because the statute is modern.
- C. Analyze the claim’s historical analogue and the nature of the remedy sought.**
- D. The jury-trial right turns solely on legislative silence.

7) Plaintiffs allege that competing firms fixed text-messaging prices. The complaint pleads: (i) near-simultaneous price hikes by all of the companies; (ii) public statements, within a two-month span, from each of defendants’ CEOs about the need for maintaining “price stability” in such a concentrated market; (iii) an internal email at one firm, stating “we’ll follow [other firm]’s lead this quarter”; (iv) a guest register at a resort in the Rocky Mountains showing that all of the defendants’ CEOs stayed at the lodge on the same weekend during a conference of telecommunications companies. Which statement best captures how the court should evaluate the sufficiency of the complaint?

A. In every case, parallel price increases are certainly sufficient, by themselves, to show an unlawful price-fixing conspiracy.

B. To be sufficient, a complaint must affirmatively exclude all innocent explanations for the conduct.

C. Circumstantial plus factors, such as opportunities to conspire and suggestive statements, can make it plausible that companies agreed to fix prices, even if innocent explanations exist.

D. Direct “smoking-gun” evidence is required at the pleading stage.

8) A client emails outside counsel: “I’m being sued for infringing on a competitor’s patent. I probably put in my application for a patent after they did. Can we just backdate my application so it looks better?”

Counsel replies by email: “No, that is not lawful—and strategically, it’s not a good idea, either, because your competitor will be able to just dig up your initial application form that the government has on file.”

Client replies by email: “I think strategically it’s fine—they’re not too bright over there at my competitor, so I doubt they’ll think to look into this. So please go ahead and draft a version that backdates our patent application to last year so we can defeat the competitor’s claim.”

Counsel sends client the properly dated application, and once again warns against backdating.

During discovery, the client’s competitor moves to compel production of the email chain. Should the court compel production?

A. Yes, the emails should be disclosed because the client mentioned litigation and any litigation-related communications lose privilege.

B. No, the emails are privileged, because the lawyer refused to participate in the client’s plan.

C. Yes, the emails should be disclosed because they are not privileged, as the client sought the lawyer's services in furtherance of fraud (backdating to mislead), even if the lawyer refused to help.

D. No, the emails are privileged because the only way to destroy privilege is to carry out a fraudulent plan, not just to *attempt* to carry out a fraudulent plan.

[Andrew's notes: Rather than a full model answer, I will emphasize that it's important to start the summary judgment analysis with the relevant substantive law, and proceed from there to analyze what a jury could determine about the evidence.]

Here, a jury could certainly conclude that Plaintiff showed the first and third prongs of the O'Quinn state law requirements: Plaintiff's evidence definitely shows she got sick, and that she suffered approximately \$100,000 in monetary damages from the sickness. The close call is then the second prong of the substantive law, whether Plaintiff got sick because of exposure to toxic substances at her workplace.

The jury would have to conclude that there were toxic substances at the workplace, since both Plaintiff and the CEO said that there were. That at least gets Plaintiff partway to meeting the "exposure" prong of the test, since there were toxic substances onsite, to which she potentially could have been exposed.

But could a jury infer that Plaintiff was in fact, at some point, exposed to those toxic substances? That's where good answers will dig particularly deeply into the different evidence from discovery to argue what a reasonable jury could infer from this deposition testimony and other evidence.]